

**JUDGMENT SHEET
IN THE LAHORE HIGH COURT, MULTAN BENCH, MULTAN
JUDICIAL DEPARTMENT.**

RFA No.154/2011

Mst. Akhtar Fatima through Legal Heirs etc. VS Bakhat Rafee Shah etc.

JUDGMENT

Date of hearing	09.4.2015
Appellant(s) by:	Ch. Abdul Razzaq, Advocate.
Respondent by:	Nemo.

CH. MUHAMMAD IQBAL, J. – Through this RFA, the appellants have called in question the validity of judgment and decree dated 8.3.2011 whereby the suit for specific performance, filed by the appellants/plaintiffs, was dismissed by the learned Civil Judge Ist Class, Sahiwal.

2. Brief facts of the case are that allegedly the predecessor-in-interest of the appellants/plaintiffs namely Mst. Akhtar Fatima purchased land measuring 116-kanals 13-marlas out of land measuring 503-kanals 13-marlas falling in Khewat No.96 Khatoni No.434 to 443 situated in Chak No.46/GD, Tehsil and District Sahiwal and land measuring 382-kanals 11-marlas falling in Khewat No.32 Khatoni No.118 in Chak No.62/SP, Tehsil and District Pakpattan Sharif through agreement to sell dated 29.3.1995 (Exh.P-2) from one Farhat Dastagir Shah, general attorney of Mst. Asghari Sultana, against a total consideration of Rs.26,00,000/-, out of which, Rs.25,00,000/- had already received by the predecessor of the respondents/defendants i.e. Mst. Asghari Sultana and it was settled that after receiving the remaining amount of Rs.1,00,000/- the said land was to be transferred in the name of the purchaser through registered sale deed. Later on,

said Mst. Asghari died and her legal heirs refused to transfer the said land in the name of appellants/plaintiffs, whereupon, they filed a suit for specific performance on the basis of the said agreement to sell. The respondents/defendants contested the said suit by filing written statement and denied the contents of the plaint. Out of the divergent pleadings of the parties, the learned trial Court framed the following issues: -

- 1) Whether the suit is not maintainable in its present form in view of the preliminary objection No.1 of the written statement? OPD 1 & 2
- 2) Whether the said power of attorney and the agreement to sell are forged document and both have no effect against the rights of the defendants? OPD 1 & 2
- 3) Whether the plaintiff has no cause of action against the defendant No.1 and No.2? OPD 1 & 2
- 4) Whether the said agreement to sell is forged document and it was prepared with the consent of the deceased Mst. Asghari Sultana and is against the law and fact and the same is not binding on the defendants No.1 and 2? OPD 1 & 2
- 5) Whether the defendants are entitled to special costs under Section 35-A of CPC? OPD
- 6) Whether the plaintiff is entitled to the decree for specific performance as alleged on the basis of the said agreement deed dated 29.3.1995? OPP
- 7) Relief.

Both the parties in support of their respective versions produced their oral as well as documentary evidence. The learned trial Court after hearing both the parties and examining the evidence dismissed the suit of the appellants/plaintiffs through the judgment and decree dated 8.3.2011. Hence, this appeal.

3. It has been contended on behalf of the appellants/plaintiffs that while passing the impugned judgment and decree, the learned trial

Court has ignored the compromise (Exh.C-1) arrived between the parties and also disbelieved the general power of attorney (Exh.P-1) and agreement to sell dated 29.3.1995 (Exh.P-2); that the impugned judgment and decree is the result of misreading and non-reading of the evidence; and that the learned trial Court has not applied its judicious mind while dismissing the suit of the appellants/plaintiffs.

4. Heard. Record perused.

5. It is an admitted fact that Mst. Asghari Sultana (predecessor-in-interest of the respondents/defendants) was the owner of land measuring 116-kanals 13-marlas out of land measuring 503-kanals 13-marlas falling in Khewat No.96 Khatoni No.434 to 443 situated in Chak No.46/GD, Tehsil and District Sahiwal and land measuring 382-kanals 11-marlas falling in Khewat No.32 Khatoni No.118 in Chak No.62/SP, Tehsil and District Pakpattan Sharif. One Farhat Dastagir Shah, being alleged general attorney of said Mst. Asghari Sultana, executed an agreement to sell the above said properties in favour of one Mst. Akhtar Fatima.

Having a glance on general power of attorney (Exh.P-1), it reveals that the exact whereabouts of the properties, owned by Mst. Asghari Sultana, are not specifically mentioned in it then how the suit land could be chosen by the alleged general attorney for the purpose of sale and transfer. This fact alone makes the transaction doubtful. Even otherwise, it is settled principle of law that there must not be any uncertainty or vagueness in the power of attorney but in the case in hand, the same is lacking and non-mentioning of complete particulars with specifications of the properties in the alleged power of attorney in favour of Farhat Dastagir Shah makes it doubtful and it can be said that

it is the result of fraud and fabrication just to usurp the property of a lady. It is well settled law that power of attorney should be construed strictly and only such powers qua the explicit object which were expressly and specifically mentioned in the power of attorney should be exercised by the agent as considered to have been delegated to him. Reliance is placed on the cases of “Unair Ali Khan and others VS Faiz Rasool and others” (PLD 2013 SC 190), “Imam Din and 4 others Vs Bashir Ahmad and 10 others” (PLD 2005 SC 418), “Muhammad Akhtar VS Mst. Manna and 3 others” (2001 SCMR 1700) and “Fida Muhammad VS Pir Muhammad Khan (deceased) through legal heirs and others” (PLD 1985 SC 341).

6. Another important aspect of the matter is that the alleged attorney Farhat Dastagir Shah sold out the above mentioned properties through agreement to sell dated 29.3.1995 to Mst. Akhtar Fatima, who is his real mother and it is settled principle of law that no general attorney can alienate the property to his close relatives i.e. mother, father, brother, wife etc. without getting special permission from the principal. Hence, from this angle also, the alleged agreement to sell is not enforceable because the alleged general attorney had not taken any special permission from the principal for sale of her property to his mother. In this regard reliance is placed on the case of “Muhammad Taj VS Arshad Mehmood and 3 others (2009 SCMR 114), the relevant portion whereof is reproduced as under: -

“Whenever general attorney transfers property of his principal in his own name or in the name of his close fiduciary relations, the attorney has to take special permission from the principal”.

7. It is also pertinent to mention here that on the alleged agreement to sell (Exh.P-2) the signature of Mst. Akhtar Fatima are not available, as such, it is an unilateral agreement and under the law it cannot be enforced even if it is admitted by the parties. Reliance is placed on the case of “Mst. Barkat Bibi and others Vs. Muhammad Rafique and others” (1990 SCMR 28) wherein it has been held as follows:-

“A perusal of the above “Iqrarnama” shows that there is no reference made therein specifically to the exact consideration for the agreement. Moreover, we observe that it is a unilateral offer made by Muhammad Din to reconvey the land as soon as they (the vendors) themselves have raised the money. No indication is to be found in the document that this offer was accepted by the respondents for no one on the side of the respondents has signed this “Iqrarnama” in token of its acceptance. It was no more than a proposal because unless the person to whom the offer is made signifies his willingness to accept it, the proposal does not, in law, ripen into an agreement. Now it is only an “agreement”, as the term is understood in law, which can be enforced by a suit for specific performance. Accordingly, it is only if the so-called “Iqrarnama” qualified as an agreement would it have the effect of creating a legal relationship between the parties so as to give rise to jural, as opposed to moral, obligations and then only would a suit for specific performance be maintainable on its basis. The so-called “Iqrarnama” dated 24-7-1953, on close examination, however, does not qualify to be an “agreement”. Hence a suit to specifically enforce it was not competent.”

Reliance is also placed on the case of Farzand Ali and another VS Khuda Bakhsh and others (PLD 2015 SC 187).

8. It is also pertinent to mention here that the alleged agreement to sell was reduced into writing in the presence of Manzoor Ahmad son of Muhammad Sadiq and Muhammad Saleem and their names are also mentioned therein and they also signed it but none of them had been produced by the appellants/plaintiffs before the learned trial Court to prove the same. Similarly, alleged power of attorney had

also been witnessed by Agha Khursheed Iqbal son of Mehmood Shah and Haroon Zaman Shah son of Pir Muhammad Zaman and they also made their signatures in it but one of the marginal witness namely Haroon Zaman Shah had not been produced before the learned trial Court to prove it. under Article 17 of the Qanoon-e-Shahadat Order, 1984, any agreement creating future obligations should be attested by two truthful male witnesses or if two truthful male witnesses are not available, then one male and two female witnesses can attest any such instrument but in the instant case, the same is lacking, as such, the appellants have failed to prove the valid execution of the alleged agreement to sell and power of attorney as required under Article 79 of the Qanoon-e-Shahadat Order, 1984. Reliance is placed on the case of “Hafiz Tassaduq Hussain VS Muhammad Din through legal heirs and others” (PLD 2011 SC 241).

9. So far as the contention of the learned counsel for the appellants/plaintiffs that the learned trial Court has ignored the factum of compromise (Exh. C-1) between the parties, it is submitted that the said compromise is between the appellants/plaintiffs and respondents No.1-A to 1-D. Hence, the said compromise is incomplete because respondent/defendant No.2 had not arrived at any compromise with the appellants/defendants. Moreover, said respondent/defendant No.2 had not given any authority to respondent/defendant No.1-A to arrive at a compromise on his behalf. So, in this background, the suit could not be decreed on the basis of compromise and the learned trial Court has rightly observed that the settlement has been made by the consenting parties in order to deprive respondent/defendant No.2 from the

inheritance of Mst. Asghari Sultana; and that the alleged agreement to sell had been fraudulently prepared by Farhat Dastagir Shah.

10. The nutshell of the above discussion is that we are of the considered view that the appellants/plaintiffs have miserably failed to prove their case and the learned trial Court has not committed any illegality or irregularity while dismissing their suit through judgment and decree dated 8.3.2011 which, even otherwise, is in consonance with the record and the law laid down by the Hon'ble Supreme Court of Pakistan.

11. In view of the above, the instant appeal is dismissed and the impugned judgment and decree dated 8.3.2011 is hereby upheld.

(Ali Akabar Qureshi)
Judge

(Ch. Muhammad Iqbal)
Judge

Naeem

Approved for reporting.

Judge

Judge